munity that is held in trust by the United States or is subject to a restriction against alienation imposed by the United States.

(b) The Secretary of the Interior or his authorized representative may in specific cases or in specific geographic areas adopt or make applicable to Indian lands all or any part of such laws, ordinances, codes, resolutions, rules or other regulations referred to in paragraph (a) of this section as he shall determine to be in the best interest of the Indian owner or owners in achieving the highest and best use of such property. In determining whether, or to what extent, such laws, ordinances, codes, resolutions, rules or other regulations shall be adopted or made applicable, the Secretary or his authorized representative may consult with the Indian owner or owners and may consider the use of, and restrictions or limitations on the use of, other property in the vicinity, and such other factors as he shall deem appropriate.

[F.R. Doc. 65-6028; Filed, June 8, 1965; 8:50 a.m.]

Title 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 36—LOAN GUARANTY

Eligibility

In § 36.4402, the introductory portion preceding paragraph (a) and paragraph (d) are amended to read as follows:

§ 36.4402 Eligibility.

No beneficiary shall be eligible for assistance under chapter 21 for the purpose of reimbursing him for the cost of an existing structure acquired by him prior to applying for assistance or for constructing or remodeling a dwelling or for otherwise acquiring a suitable housing unit, unless it is determined pursuant to §§ 36.4401 through 36.4410 that

* * * * *

(d) The veteran has or will acquire an interest in the housing unit which is:

(1) A fee simple estate, or

(2) A leasehold estate, the unexpired term of which, including renewals at the option of the lessee, is not less than 50 years, or

(3) An interest in a residential unit in a cooperative or a condominium type development which in the judgment of the Chief Benefits Director or the Director, Loan Guaranty Service, provides a right of occupancy for a period of not less than 50 years;

Provided, The title to such estate or interest is or shall be such as is acceptable to prudent lending institutions, informed buyers, title companies, and attorneys, generally, in the community.

(72 Stat. 1114; 38 U.S.C. 210)

This VA Regulation is effective upon publication in the FEDERAL REGISTER.

Approved: June 3, 1965.

By direction of the Administrator.

[SEAL] CYRIL F. BRICKFIELD,
Deputy Administrator.

[F.R. Doc. 65-5963; Filed, June 8, 1965; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3661]

[Idaho 016389]

IDAHO

Partial Revocation of Executive Order No. 7655 (Deer Flat National Wildlife Refuge)

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 7655 of July 12, 1937, establishing the Deer Flat Migratory Waterfowl Refuge, the name of which was changed to the Deer Flat National Wildlife Refuge by Proclamation No. 2416 of July 25, 1940, is hereby revoked so far as it affects the following described land:

BOISE MERIDIAN

T. 2 N., R. 2 W.,

In section 7, that part of the SW¼SE¼ lying south of, and adjacent to, the centerline of South Shore Drive, so called (county road), and north of, and adjacent to, the take line as established in 1905 by the Bureau of Reclamation, bounded and described as follows:

Beginning at Corner 1, a point in the intersection of said take line and the north-south centerline of said section 7, from which point the south ¼ corner of said section bears S.00°01'W., 370.3 feet distant; thence with said north-south centerline N.00°01'E., 58.7 feet to Corner 2 a point in the intersection of said centerline and the centerline of the aforesaid county road; thence with the said road centerline, with the meanders thereof S.64°09'E., 845.5 feet; S.62°08'E., 50.0 feet; S.56°42'E., 50.0 feet; S.50°54'-E., 11.6 feet to Corner 3, a point in the intersection of said road centerline and the south boundary line of said section 7; thence with said south boundary line S.89°51'W., 13.5 feet to Corner 4, a point in the intersection of said section line and the aforesaid take line; thence with said take line with the meanders thereof N.63°26'W., 280.4 feet; N.73°56'W., 430.0 feet; N.55°16'W., 217.1 feet to the place of beginning; containing 0.93 acre more or less; and

Bounded on the northeast by land of the United States (tract 1) and the centerline of South Shore Drive, so called (county road) on the south by land of Mae O'Maley; and on the west by land of the United States (tract 1).

The land is acquired.

JOHN A. CARVER, JR.,
Under Secretary of the Interior.

JUNE 3, 1965.

[F.R. Doc. 65-5964; Filed, June 8, 1965; 8:47 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 65-493]

PART 0—COMMISSION ORGANIZATION

Waiving of Geographical Restriction on Validity of Operator Licenses Issued to Alien Aircraft Pilots

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 2d day of June 1965;

The Commission having under consideration § 13.4(c) of its rules which provides that a radio operator license issued to an alien aircraft pilot shall be valid only if he is lawfully in the United States; and

It appearing, that the Commission from time to time is requested to waive the aforementioned restriction for limited periods to permit alien pilots to operate radio stations on United States aircraft while they are outside the United States; and

It further appearing, that acting on requests for such waiver is a function which should be delegated to the staff in the interest of expediting operator licensing; and

It further appearing, that the amendment herein ordered relates to internal Commission organization and procedure and that publication of notice of proposed rule making pursuant to section 4(a) of the Administrative Procedure Act is not required:

It is ordered, Pursuant to authority contained in sections 4(i), 5(d)(1), and 303(1) of the Communications Act of 1934, as amended, that effective June 10, 1965, Part 0 is amended as set forth below.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,[1]

[SEAL] BEN F. WAPLE,
Secretary.

Section 0.311 of the Commission's rules is amended by adding paragraph (a)(13) as follows:

§ 0.311 **Authority delegated to the Chief and to the Deputy Chief of the Field Engineering Bureau.**

(a) * * *

(13) To act on requests for a waiver of the geographical restriction in § 13.4(c) of this chapter on the validity of

[1] Commissioner Loevinger absent.